

मेसर्स टी. आर. खन. खनजी लिमि. द्वारा  
भेंगारी नवाधारा (टेष्ठा) से तमनार तक  
सब स्टेशन संचरण पथ निर्माण

AREA: — 3.542 HA.

- Encl:- 1. 1st stage approval letter  
29/04/2015  
2. 2nd stage approval letter  
22/07/2015



भारत सरकार  
GOVERNMENT OF INDIA  
पर्यावरण, वन एवं जलवायु परिवर्तन मंत्रालय  
MINISTRY OF ENVIRONMENT, FORESTS  
& CLIMATE CHANGE

Regional Office (WCZ)  
Ground Floor, East Wing  
New Secretariat Building  
Civil Lines, Nagpur - 440001  
अणुडाक/Email:moefregionalofficenagpur@gmail.com

No. 6-CHB-35/2015-BHO/11

Date: २९ /04/2014.

2015

To,  
The Principal Secretary,  
Govt. of Chhattisgarh,  
Forest Department,  
Mantralaya, Mahanadi Bhavan,  
New Raipur (CG).

Sub: Diversion of 2.438 ha Protected Forest Land and 1.104 ha Revenue Land (Total 3.542 ha) for construction of Transmission Line from Bhengari Navapara (Tenda) to Tamnar substation in Raigarh District.

Sir,

I am directed to invite a refer to State Government letter No.F-5-09/2015/10-2 dated 28/02/2015 on the above mentioned subject seeking prior approval of the Central Government under Section-2 of the Forest (Conservation) Act, 1980.

After due consideration of the above proposal of the State Government, the undersigned, on behalf of the Central Government, is hereby to convey in-principle approval for diversion of 2.438 ha Protected Forest Land and 1.104 ha Revenue Land (Total 3.542 ha) for construction of Transmission Line from Bhengari Navapara (Tenda) to Tamnar substation in Raigarh District subject to the following conditions:-

1. Legal status of the forest land shall remain unchanged.
2. All the funds received from the User Agency under the project shall be transferred to the Ad-hoc Compensatory Afforestation Fund Management & Planning Agency (CAMPA) in Savings Bank A/c No. SB 01025203 Corporation Bank, Lodhi Complex, New Delhi-110003 of Chhattisgarh state.
3. Compensatory Afforestation shall be taken up by the Forest Department over 7.100 ha degraded forest land (1238 OA) Badegumad west, at the cost of the User Agency. Compensatory Afforestation will be of a mix of local indigenous species and monoculture of species will be avoided. The CA will be maintained for 10 years.
4. The cost of Compensatory Afforestation scheme including cost of survey, demarcation and erection of boundary pillars at the prevailing wage rate and maintenance there of for 10 years shall be deposited in advance with the Forest department by the User Agency. The scheme may include appropriate provision for anticipated cost increase for works scheduled for subsequent years.

5. Land identified for CA shall be clearly depicted on a Survey of India Toposheet of 1:50,000. The bearing of each corner point and distances between two successive points will be recorded along with the GPS readings of Geo coordinates (Latitudes & Longitudes).
6. The State Government shall charge the "Net Present Value" (NPV) for the 3.542 ha of forest land to be diverted under the proposal from the User Agency as per the orders of the Hon'ble Supreme Court of India dated 30/10/2002, 01/08/2003, 28/03/2008, 24/04/2008 and 09/05/2008 in IA No. 566 in WP (Civil) No. 202/1995 and as per the guidelines issued by the Ministry vide letters No. 5-1/1998-FC(Pt. II) dated 18/09/2003 as well as letter No. 5-2/2006-FC dated 03/10/2006 and 5-3/2007-FC dated 05.02.2009 in this regard and others.
7. Additional amount of the NPV of diverted forest land, if any, becoming due after finalization of the same by the Hon'ble Supreme Court of India on receipt of the report from the Expert Committee, shall be charged by the State Government from the User Agency, which shall furnish an undertaking to this effect.
8. In forest areas, only vertical delta configuration of 400 kV S/C and delta configuration of 765 kV S/C shall be permitted.
9. The trees on strips would have to be felled but after stringing work is completed, natural regeneration will be allowed to come up. Felling/ pollarding/ pruning of trees will be done with the permission of the local forest officer wherever necessary to maintain the electrical clearance. One outer strip shall be left clear to permit maintenance of the transmission line.
10. During construction of transmission line, pollarding/ pruning of trees located outside the above width of the strips, whose branches/ parts infringe with conductor stringing, shall be permitted to the extent necessary, as may be decided by local forest officer.
11. Pruning of trees for taking construction/ stringing equipments through existing approach/ access routes in forest areas shall also be permitted to the extent necessary, as may be decided by local forest officer. Construction of new approach/ access route will however, require prior approval under the Act.
12. As far as possible, the route alignment through forest areas will not have any line deviation. The maximum width or right of way for the transmission line on the forest land shall be 46 meters.
13. Below each conductor, width clearance of 03 meters would be permitted for taking the tension stringing equipment. Felling of trees will be restricted to a width of 3 mtr only below each conductor.
14. In the remaining width of the right of way upto a maximum of 64 meters, trees will be lopped only to the extent required, for preventing electrical hazards by maintaining minimum clearance of 5.5 meters between conductors and trees. The sag and swing of the conductors shall be kept in view while working out minimum clearance.

15. In the case of transmission line to be constructed in hilly areas, where adequate clearance is already available, trees will not be cut.
16. The User Agency will defray the cost of removal of 218 trees in the area that fall in diversion. However, only the required and minimum number of trees will be felled.
17. The boundary of the diverted forest land shall be demarcated on ground at the project cost, by erecting four feet high reinforced cement concrete pillars, each inscribed with its serial number, forward and back bearing and distance from pillar to pillar.
18. Relevant directions contained in various notifications issued by the Central Government under the provisions of the Environment (Protection) Act, 1986 and Environment (Protection) Rules, 1986 made there under and as amended from time to time regarding use of fly ash shall be fully complied with.
19. The User Agency will install circuit breakers at suitable places besides maintaining necessary ground clearance to prevent electrocution of wild animals.
20. Muck disposal, if required, should be taken up as per the scheme approved by the Forest Department.
21. Soil conservation measures, if required, should be taken up by the User Agency for which fund should be provided as per the current rate of works.
22. No damage shall be caused to the flora and fauna of the area.
23. The forest land shall not be used for any purpose other than that specified in the project proposal.
24. The forest land proposed to be diverted shall under no circumstances be transferred to any other agencies, department or person without prior approval of Central Government.
25. Provisions of all Acts & rules and guidelines applicable to the project shall have to be complied.
26. Any other condition, which this office may stipulate for conservation of flora and fauna as and when necessity arises.

After receipt of the compliance report on fulfillment of the condition Nos. 2, 3, 4, 5, 6 & 7 from the State Government, proposal will be considered for final approval under Section-2 of the Forest (Conservation) Act, 1980 by this office.

Any order for transfer of forest land to user agency shall not be issued by the State Government till formal approval order for diversion of forest land is issued by this office.

Yours faithfully,



( A.K. Biswal )  
Conservator of Forests(C)

Copy to:-

1. The Director (RO HQ), Ministry of Environment, Forest and Climate Change, Agni C-wing, 3<sup>rd</sup> Floor, Indira Paryavaran Bhawan, Jor Bagh Road, Aliganj, New Delhi - 110003.
2. The Addl. Principal Chief Conservator of Forests and Nodal Officer (LM), Arany Bhavan, Medical College Road, Raipur (C.G.).
3. The Divisional Forest Officer, Raigarh Division, Raigarh, Chhattisgarh.
4. Project head, M/s TRN Energy Thermal Power Project, Bengari, Navapara (Tenda Garhgoda, Raigarh District, Chhattisgarh.
5. Order file.

( A.K. Biswal )  
Conservator of Forests(C

2015

21/5/15



कार्यालय प्रधान मुख्य वन संरक्षक, छत्तीसगढ़, अरण्य भवन, गेड़िकल कॉलेज रोड़, रायपुर  
(अपर प्रधान मुख्य वन संरक्षक - भू-प्रबंध)

दूरभाष: 0771 - 2552233

ई - मेल: apccf-lm.cg@gov.in

क्र०/भू-प्रबंध/विद्युत/479-129/73

रायपुर, दिनांक 11/01/2016

प्रति,

वन मंडलाधिकारी  
रायगढ़ वन मंडल, रायगढ़  
छत्तीसगढ़

- विषय: - Diversion of 2.438 ha Protected Forest Land and 1.104 ha. Revenue Land; Total 3.542 ha. for construction of Transmission Line from Bhengari Navapara (Tenda) to Tamnar sub station in Raigarh District.
- संदर्भ - पंजीयन क्रमांक/2013/062  
- भारत सरकार, पर्यावरण, वन एवं जलवायु परिवर्तन मंत्रालय, नागपुर का पत्र क्र/ 6-CHB 35/ 2015 - BHO/ 186 दिनांक 22.07.2015

-0-

1. उपरोक्त विषयांतर्गत संदर्भित पत्र का अवलोकन करें जिसके माध्यम से विषयांकित प्रस्ताव की अंतिम चरण स्वीकृति भारत सरकार, पर्यावरण, वन एवं जलवायु परिवर्तन मंत्रालय, नागपुर द्वारा दिनांक 22.07.2015 को जारी की गई है। उक्त प्रस्ताव के अंतिम चरण स्वीकृति में अधिरोपित शर्तों का बिन्दुवार पालन प्रतिवेदन आवेदक संस्थान से प्राप्त कर मुख्य वन संरक्षक, बिलासपुर के माध्यम से तत्काल इस कार्यालय में प्रेषित करें।

2. वैकल्पिक वृक्षारोपण योजना वर्तमान दर से तैयार कर अंतर की राशि आवेदक संस्थान से प्राप्त कर कैम्पा मद में जमा कर मय बैंक रसीद प्रस्तुत करें।

अपूर्ण प्रतिवेदन मान्य नहीं होगा।

संलग्न:- उपरोक्तानुसार

अ.प्र.मु.व.स (भू-प्रबंध / व. सं. अ)  
(मुदित कुमार सिंह)

अ.प्र.मु.व.स (भू-प्रबंध / व. सं. अ)  
छत्तीसगढ़

रायपुर, दिनांक 11/01/2016

पृ. क्रमांक/भू-प्रबंध/विद्युत/479-129/74  
प्रतिलिपि सूचनार्थ एवं आवश्यक कार्यवाही हेतु:

1. प्रमुख सचिव, छत्तीसगढ़ शासन, वन विभाग, मंत्रालय, महानदी भवन, नया रायपुर।
2. कृपया शासन स्वीकृति जारी करने का कष्ट करें।
3. मुख्य वन संरक्षक, बिलासपुर वृत्त, बिलासपुर, छत्तीसगढ़।
3. उपाध्यक्ष, मेसर्स टी.आर.एन एनर्जी थर्मल पावर प्रोजेक्ट, भेंगारी, नवापारा (टेन्डा), घरघोड़ा, जिला रायगढ़।

संलग्न:- उपरोक्तानुसार

अ.प्र.मु.व.स (भू-प्रबंध / व. सं. अ)  
छत्तीसगढ़



भारत सरकार  
GOVERNMENT OF INDIA

पर्यावरण, वन एवं जलवायु परिवर्तन मंत्रालय  
MINISTRY OF ENVIRONMENT, FORESTS  
& CLIMATE CHANGE E-mail: mocfregionalofficenagpur@gmail.com

Regional Office (WCZ)  
Ground Floor, East Wing  
New Secretariat Building  
Civil Lines, Nagpur - 440001

F.No. 6-CHB-35/2015-BHO/186

Date: 22/07/2015.

To,  
The Principal Secretary,  
Govt. of Chhattisgarh,  
Forest Department,  
Mantralaya, Mahanadi Bhavan,  
New Raipur (CG).

Sub: Diversion of 2.438 ha Protected Forest Land and 1.104 ha Revenue Land (Total 3.542 ha) for construction of Transmission Line from Bhengari Navapara (Tenda) to Tamnar substation in Raigarh District.

- Ref. (1) This office letter No: 6-CHB-35/2015-BHO/11 dated 29/04/2015.  
(2) Govt. of Maharashtra letter No. Bhu-Pradhan/Vidyut/479-129/1785 dated 01/07/2015.  
(3) Officer on Special Duty (Ad-hoc CAMPA) MoEF, New Delhi letter No. 1-21/2013-CAMPA dated 01/07/2015.

Sir,

Reference is invited to your letter No. F-5-09/2015/10-2 dated 28/02/2015 on the above mentioned subject seeking prior approval of the Central Government under Section-2 of the Forest (Conservation) Act, 1980.

The Central Government vide this office letter (1) referred above had agreed in principle for diversion of the above forest land for the purpose mentioned, subject to the fulfillment of condition No. 2, 3, 4, 5, 6 & 7 stipulated therein.

The State Government vide letter (2) referred above have reported compliance on the fulfillment of the said conditions.

Therefore, the undersigned is hereby directed to convey the formal approval of the Central Government under Section-2 of the Forest (Conservation) Act, 1980 for the diversion of 2.438 ha Protected Forest Land and 1.104 ha Revenue Land (Total 3.542 ha) for construction of Transmission Line from Bhengari Navapara (Tenda) to Tamnar substation in Raigarh District subject to the following conditions:-

1. Legal status of the forest land shall remain unchanged.
2. Compensatory Afforestation shall be taken up by the Forest Department over 7.100 ha degraded forest land (1238 OA) Badegumad west, at the cost of the User Agency. Compensatory Afforestation will be of a mix of local indigenous species and monoculture of species will be avoided. The CA will be maintained for 10 years.

*Komayit Singh*  
22/7/15

3. Land identified for CA shall be clearly depicted on a Survey of India Toposheet of 1:50,000. The bearing of each corner point and distances between two successive points will be recorded along with the GPS readings of Geo coordinates (Latitudes & Longitudes).
4. In forest areas, only vertical delta configuration of 400 kV S/C and delta configuration of 765 kV S/C shall be permitted.
5. The trees on strips would have to be felled but after stringing work is completed, natural regeneration will be allowed to come up. Felling/ pollarding/ pruning of trees will be done with the permission of the local forest officer wherever necessary to maintain the electrical clearance. One outer strip shall be left clear to permit maintenance of the transmission line.
6. During construction of transmission line, pollarding/ pruning of trees located outside the above width of the strips, whose branches/ parts infringe with conductor stringing, shall be permitted to the extent necessary, as may be decided by local forest officer.
7. Pruning of trees for taking construction/ stringing equipments through existing approach/ access routes in forest areas shall also be permitted to the extent necessary, as may be decided by local forest officer. Construction of new approach/ access route will however, require prior approval under the Act.
8. As far as possible, the route alignment through forest areas will not have any line deviation. The maximum width or right of way for the transmission line on the forest land shall be 46 meters.
9. Below each conductor, width clearance of 03 meters would be permitted for taking the tension stringing equipment. Felling of trees will be restricted to a width of 3 mtr only below each conductor.
10. In the remaining width of the right of way upto a maximum of 64 meters, trees will be lopped only to the extent required, for preventing electrical hazards by maintaining minimum clearance of 5.5 meters between conductors and trees. The sag and swing of the conductors shall be kept in view while working out minimum clearance.
11. In the case of transmission line to be constructed in hilly areas, where adequate clearance is already available, trees will not be cut.
12. The User Agency will defray the cost of removal of 218 trees in the area that fall in diversion. However, only the required and minimum number of trees will be felled.
13. The boundary of the diverted forest land shall be demarcated on ground at the project cost, by erecting four feet high reinforced cement concrete pillars, each inscribed with its serial number, forward and back bearing and distance from pillar to pillar.
14. Relevant directions contained in various notifications issued by the Central Government under the provisions of the Environment (Protection) Act, 1986 and Environment (Protection) Rules, 1986 made there under and as amended from time to time regarding use of fly ash shall be fully complied with.

*Komaythay*  
24/2/15

15. The User Agency will install circuit breakers at suitable places besides maintaining necessary ground clearance to prevent electrocution of wild animals.
16. Muck disposal, if required, should be taken up as per the scheme approved by the Forest Department.
17. Soil conservation measures, if required, should be taken up by the User Agency for which fund should be provided as per the current rate of works.
18. No damage shall be caused to the flora and fauna of the area.
19. The forest land shall not be used for any purpose other than that specified in the project proposal.
20. The forest land proposed to be diverted shall under no circumstances be transferred to any other agencies, department or person without prior approval of Central Government.
21. Provisions of all Acts & rules and guidelines applicable to the project shall have to be complied.
22. Any other condition, which this office may stipulate for conservation of flora and fauna as and when necessity arises.

Violation of any of these conditions will amount to violation of Forest (Conservation) Act, 1980 and action would be taken accordingly.

The State Government shall ensure compliance of all the above conditions.

Yours faithfully,

*Kanwarjit Singh*  
(Kanwarjit Singh)

Addl. Principal Chief Conservator of Forests

Copy to:-

1. The Director (RO HQ), Ministry of Environment, Forest and Climate Change, Agni C-wing, 3<sup>rd</sup> Floor, Indira Paryavaran Bhawan, Jor Bagh Road, Aliganj, New Delhi - 110003.
2. The Addl. Principal Chief Conservator of Forests and Nodal Officer (LM), Aranya Bhavan, Medical College Road, Raipur (C.G.).
3. The Divisional Forest Officer, Raigarh Division, Raigarh, Chhattisgarh.
4. Project head, M/s TRN Energy Thermal Power Project, Bengari, Navapara (Tenda), Garhoda, Raigarh District, Chhattisgarh.
5. Order file.
6. APCCF, Regional Office, Nagpur.

*Kanwarjit Singh*  
(Kanwarjit Singh)

Addl. Principal Chief Conservator of Forests